

Fly GACA — Terms of Use

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OWNER Founder

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Document: terms-of-use-draft-2026-06-14.md **Version:** Draft 1.0 — 2026-06-14 **Status:** DRAFT — requires review by a qualified Saudi-licensed lawyer before use. **Applies to:** All users of the Fly GACA website, PWA, Android application, and related services. **Language:** English (master). Arabic translation required before account launch. **Contact:** i@flygaca.com | legal@flygaca.com

DRAFT — requires review by a qualified Saudi-licensed lawyer before use.

This document is a working draft prepared by an AI assistant for founder review. It is NOT legal advice and has NOT been reviewed by a Saudi-licensed lawyer. It must be reviewed and approved by qualified Saudi legal counsel before it is published or relied upon.

Instruments this draft is intended to align with: Saudi E-Commerce Law (Royal Decree M/126, 1440H / 2019); Personal Data Protection Law (PDPL) (Royal Decree M/19, 1443H); KSA Anti-Cybercrime Law (Royal Decree M/17, 1428H); Consumer Protection Law (Royal Decree M/36, 1446H / 2024); CITC content regulations; ZATCA VAT requirements. Do not publish until lawyer review is complete.

مقدمة | Introduction

الإلكترونية وتطبيقاتها. تُعدّ هذه المنصة أداةً تعليمية مستقلة ولا تنتمي إلى Fly GACA بالعربية: تحكم هذه الشروط استخدامك لمنصة الهيئة العامة للطيران المدني (الطيران المدني) ولا تمثلها. ستتوفر ترجمة عربية كاملة قبيل إطلاق الحسابات

1. About Fly GACA and These Terms

1.1 Who We Are

Fly GACA ("we", "us", "our") is an **independent, private educational reference platform** for Saudi civil aviation regulations and study material. It is operated by BDA Company International (شركة بدع الدولية), CR 7030976893, Riyadh, Kingdom of Saudi Arabia.

Fly GACA is not affiliated with, endorsed by, sponsored by, or connected to the General Authority of Civil Aviation (GACA) or any department, agency, or instrumentality of the Government of the Kingdom of Saudi Arabia. The word "GACA" in our name and throughout this

platform is used purely descriptively, to identify the subject matter of the regulations we help students study. See Section 3 and our [Disclaimer](#) for the complete independence statement.

1.2 Scope of These Terms

These Terms of Use ("Terms") govern your access to and use of:

- The Fly GACA website at **flygaca.com** and all sub-domains
- The Fly GACA Progressive Web App (PWA)
- The Fly GACA Android application
- The **Captain Adel** AI study assistant
- The Fly GACA **Library** (regulatory document search and reader)
- Fly GACA **user accounts** — Free tier, Pro tier, and Exam Pass tier
- The Fly GACA **Academy Dashboard** (B2B flight school and academy operator features)
- All related APIs, tools, guides, and content (together, the "Service")

By accessing or using the Service, you confirm that you have read, understood, and agree to be bound by these Terms and our [Privacy Notice](#) and [Acceptable Use Policy](#), which are incorporated into these Terms by reference.

If you are using the Service on behalf of a business, educational institution, or other organisation, you represent that you have authority to bind that entity to these Terms.

If you do not agree to these Terms, do not use the Service.

1.3 Age

You must be at least 15 years old to create an account. If you are under 18, you should review these Terms with a parent or guardian.

2. Educational Purpose — Independent Status — Not for Operational Use

2.1 Educational Platform Only

The Service is provided solely for **education, study, reference, and familiarisation** with Saudi civil aviation regulations and related material. It is not an operational tool.

You must not rely on the Service for:

- Flight planning, in-flight decisions, or pre-flight briefing
- Aircraft dispatch or airworthiness determinations
- Aircraft maintenance sign-off
- Any regulatory compliance determination
- Any other operational aviation purpose

2.2 GACA Is the Authoritative Source

The General Authority of Civil Aviation (GACA) is the sole authoritative source for Saudi civil aviation regulations, aeronautical information, and official publications. Where Fly GACA references, describes, indexes, or reproduces any regulatory text, the official document published by GACA at gaca.gov.sa always prevails. **Always verify against the latest official GACA publication before any professional or operational reliance.**

2.3 AIRAC-Cycle Material

Material derived from the Aeronautical Information Publication (AIP), aerodromes, charts, or Notice to Airmen (NOTAM) information changes on the 28-day AIRAC cycle and can change between cycles. Any such material on the Service is provided for **familiarisation only**. It is not current operational data. Always obtain current operational aeronautical information from the official sources.

2.4 Captain Adel AI — Additional Limitations

The Captain Adel AI study assistant is an educational tool that may contain errors, omissions, hallucinations, or outdated information. Its outputs are study aids, not authoritative interpretations. Captain Adel cites sources and links to official GACA documents, but its responses must never be treated as final regulatory determinations. See Section 7 for AI-specific terms.

3. Independence Disclaimer

Fly GACA is a **private, independent educational service**. It is not:

- An official government service or publication
- Affiliated with, endorsed by, or authorised by the General Authority of Civil Aviation (GACA)
- Connected to the Government of the Kingdom of Saudi Arabia, any Ministry, or any public authority
- A substitute for the official GACA website (gaca.gov.sa), official GACA publications, or qualified professional advice

The use of "GACA", "GACAR", and similar terms throughout the Service is purely descriptive — referring to the regulations and publications those names identify. No affiliation or endorsement is implied.

4. Accounts

4.1 Account Registration

To access paid features, you must create an account. You agree to:

- Provide accurate, current, and complete information during registration
- Keep your account information updated
- Maintain the confidentiality of your password and access credentials
- Notify us immediately at security@flygaca.com of any suspected unauthorised access
- Be responsible for all activity that occurs under your account

We reserve the right to refuse registration or close accounts at our discretion, including for violation of these Terms.

4.2 Subscription Tiers

The Service is offered at the following tiers:

Tier	Description
Free	Access to the public Library and limited study tools; no account required for basic library browsing
Pro	Full access to the Library, Captain Adel AI, mock exams, progress tracking, and all study tools; monthly or annual subscription
Exam Pass	A focused, time-limited access bundle for exam preparation; covers the period of an upcoming scheduled examination

Specific features included in each tier are set out on the [Pricing page](#). Features are subject to change. Material changes to your active tier will be communicated to you with reasonable notice.

4.3 Academy Accounts (B2B)

Flight schools, training academies, and other educational institutions accessing the Service on behalf of enrolled cadets or students are subject to the separate **Fly GACA Customer Agreement & EULA**, which governs the B2B relationship and includes additional data processing terms required under the Personal Data Protection Law (PDPL).

5. Payment, Billing, and Refunds

5.1 Prices and VAT

Prices are displayed in Saudi Riyals (SAR) inclusive of Value Added Tax (VAT) at the applicable rate. VAT is applied in accordance with the requirements of the Zakat, Tax and Customs Authority (ZATCA). A VAT receipt is provided for each transaction.

5.2 Payment Processing

Payments are processed through **Moyasar** (or such other payment processor as we notify you of from time to time), a SAMA-licensed payment service provider. Your payment card and bank data are processed by Moyasar and not stored by Fly GACA.

5.3 Subscriptions and Renewal

Pro and Exam Pass subscriptions renew automatically at the end of each billing period unless you cancel before the renewal date. You can manage and cancel your subscription from your account settings at any time.

5.4 Refund Policy

- **Individual subscribers:** A full refund is available within **30 days** of the initial subscription payment if you have not made substantial use of paid features during that period. After 30 days, no refund is payable for the current billing period. If you cancel, access continues until the end of the paid period.
- **Exam Pass:** No refund is available after the pass has been activated and study material accessed, given the time-limited nature of the product.
- **Academy tier:** Refunds are governed by the Customer Agreement & EULA and any Order Form.
- To request a refund, contact support@flygaca.com with your order details.

5.5 Disputed Charges

If you believe a charge is incorrect, contact us at support@flygaca.com within 30 days of the charge date. We will investigate and respond within 5 business days.

6. Acceptable Use

Use of the Service is subject to our [Acceptable Use Policy \(AUP\)](#), incorporated here. Key prohibitions include:

- Using the Service for any unlawful purpose or in breach of any applicable KSA law or regulation
- Attempting to gain unauthorised access to the Service, its infrastructure, or other users' accounts
- Reverse-engineering, scraping, harvesting, or bulk-extracting Service content beyond personal study use
- Using the Service to impersonate GACA or to create the impression that any content is officially endorsed by GACA
- Using Captain Adel AI prompts to generate content designed to deceive, defame, or cause harm
- Sharing, reselling, or sub-licensing access to the Service without our express written consent

Violation of the AUP may result in suspension or termination of your account without refund.

7. Captain Adel — AI Study Assistant

7.1 Educational Tool Only

Captain Adel is an AI-powered study assistant designed to help users understand Saudi civil aviation regulations. It is an educational tool only. Its outputs:

- Are not authoritative interpretations of aviation law or regulation
- May contain errors, omissions, or hallucinations
- May not reflect the most recent regulatory amendments
- Are not a substitute for qualified professional or regulatory advice

7.2 Verification Responsibility

You are responsible for independently verifying any information provided by Captain Adel against the official GACA source before acting on it in any professional or operational context.

7.3 Prohibited Uses of Captain Adel

You must not use Captain Adel to:

- Attempt to extract or reconstruct copyrighted material in bulk
- Obtain advice intended to be relied upon for any operational aviation purpose
- Generate content that misrepresents itself as official GACA guidance

7.4 Feedback and Error Reporting

If you believe Captain Adel has provided materially incorrect information about a regulation, please report it at support@flygaca.com. We will review and correct errors as quickly as reasonably practicable.

8. Intellectual Property

8.1 Our Content

The Fly GACA name, brand, logo, design, software, original written content, training materials, and all other original works created by Fly GACA are our intellectual property or that of our licensors, protected under the laws of the Kingdom of Saudi Arabia.

8.2 Regulatory Content

Regulatory documents, official publications, and aeronautical data published by GACA are the material of GACA or the Kingdom of Saudi Arabia. Fly GACA does not claim ownership of such material. Where such material is referenced, indexed, or reproduced on the Service, it is done for

educational purposes only. The official copy published by GACA always prevails. [The extent to which Fly GACA may lawfully host, index, or reproduce GACA-published material is subject to a pending legal opinion — see our Lawyer Brief on Corpus Rights.]

8.3 Your Content

If you submit content to the Service (e.g., forum posts, study notes, or feedback), you grant us a non-exclusive, royalty-free, worldwide licence to use, store, display, and reproduce that content to operate the Service. You retain ownership of content you create. You warrant that your content does not infringe any third-party rights.

8.4 Licence to Use the Service

We grant you a personal, non-exclusive, non-transferable, revocable licence to access and use the Service for your own educational purposes, subject to these Terms. This licence does not permit you to resell, sublicense, copy, distribute, or commercially exploit any part of the Service or its content.

9. Privacy and Data Protection

Your personal data is processed in accordance with our [Privacy Notice](#) and the Personal Data Protection Law of the Kingdom of Saudi Arabia (Royal Decree M/19, 1443H). By creating an account, you acknowledge that you have read the Privacy Notice.

10. Third-Party Services and Links

The Service links to third-party websites (including gaca.gov.sa) and integrates third-party services (including Google Cloud for hosting and data storage, Google Gemini for Captain Adel AI responses, Moyasar for payments, and Cloudflare for performance). We do not control and are not responsible for the content, accuracy, availability, or practices of any third-party site or service. A link or integration is not an endorsement.

11. No Warranties

THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE", WITHOUT WARRANTY OF ANY KIND, WHETHER EXPRESS OR IMPLIED, INCLUDING AS TO ACCURACY, COMPLETENESS, CURRENCY, REGULATORY STATUS, AVAILABILITY, OR FITNESS FOR A PARTICULAR PURPOSE. WE DO NOT WARRANT THAT:

- THE SERVICE WILL BE UNINTERRUPTED, ERROR-FREE, OR SECURE
- ANY REGULATORY CONTENT IS CURRENT OR AUTHORITATIVE

- CAPTAIN ADEL AI OUTPUTS ARE ACCURATE OR COMPLETE

YOUR USE OF THE SERVICE IS AT YOUR SOLE RISK.

Nothing in these Terms limits any statutory consumer rights you may have under the Consumer Protection Law of the Kingdom of Saudi Arabia that cannot be excluded by contract.

12. Limitation of Liability

TO THE FULLEST EXTENT PERMITTED BY THE LAWS OF THE KINGDOM OF SAUDI ARABIA:

(a) Fly GACA, its founder, employees, contractors, and agents shall not be liable for any loss, damage, injury, or expense of any kind arising out of or in connection with:

- Your use of, or inability to use, the Service
- Reliance on any content, AI output, regulatory summary, or other material on the Service
- Any operational aviation decision, whether or not informed by use of the Service
- Unauthorised access to your data (to the extent such access was not caused by our negligence)

(b) Our total aggregate liability to you for any claim arising out of these Terms or the Service, regardless of the cause of action, shall not exceed the total subscription fees paid by you in the 12 months preceding the claim.

(c) We shall not be liable for any indirect, consequential, special, exemplary, or punitive damages, including lost profits or data.

The limitations in this section are a fundamental element of our agreement with you. The Service would not be provided on these terms without them. They apply to the fullest extent permitted by applicable law and do not exclude liability for fraud or wilful misconduct.

13. Indemnification

You agree to indemnify and hold harmless Fly GACA and its founder, employees, and agents from and against any claim, liability, loss, cost, or expense (including reasonable legal fees) arising from:

- Your use of the Service in violation of these Terms or applicable law
 - Your user content
 - Your violation of any third-party rights
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14. Termination

14.1 By You

You may close your account at any time through your account settings. Closure does not entitle you to a refund except as set out in Section 5.4.

14.2 By Us

We may suspend or terminate your access to the Service immediately, without notice, if we reasonably believe you have violated these Terms or the AUP, or if required by applicable law. We will notify you of termination unless prohibited by law.

14.3 Effect of Termination

On termination, your right to access the Service ceases. Provisions of these Terms that by their nature should survive termination will do so, including Sections 3, 8, 11, 12, 13, and 15.

15. Governing Law and Disputes

15.1 Governing Law

These Terms and your use of the Service are governed by the laws of the Kingdom of Saudi Arabia.

15.2 Disputes

Any dispute arising out of or in connection with these Terms or the Service that cannot be resolved by good-faith negotiation shall be referred to the competent courts of the Kingdom of Saudi Arabia. For disputes involving amounts below the threshold prescribed by applicable Saudi consumer protection regulations, the relevant regulatory complaints mechanism may also be available to you.

15.3 Consumer Rights

Nothing in these Terms restricts any right you may have under the Consumer Protection Law of the Kingdom of Saudi Arabia (Royal Decree M/36, 1446H / 2024) or applicable CITC regulations.

16. General

16.1 Entire Agreement

These Terms, together with the Privacy Notice and the AUP (and, for paid Academy customers, the Customer Agreement & EULA), constitute the entire agreement between you and Fly GACA relating to the Service.

16.2 Changes to These Terms

We may update these Terms from time to time. Material changes will be notified to account holders by email and posted on the website with a clear effective date. Continued use of the Service after the effective date constitutes acceptance of the updated Terms.

16.3 Severability

If any provision of these Terms is found to be invalid or unenforceable, that provision is modified to the minimum extent necessary to make it enforceable, and the remaining provisions continue in full force.

16.4 Language

The English version of these Terms is the operative version. In the event of any conflict between the English text and any Arabic translation, the English text prevails. [Note for lawyer: consider whether this approach is permissible under KSA consumer protection regulations or whether Arabic must be given equal or superior status for consumer contracts.]

16.5 Contact

Purpose	Contact
General queries	i@flygaca.com
Support	support@flygaca.com
Legal / notices	legal@flygaca.com
Privacy	privacy@flygaca.com
Security	security@flygaca.com

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